schino cherries. Such weight shall not include packing media, or in the case of candied maraschino cherries, added sugar. It may be used in externally applied drugs and cosmetics without quantitative restriction. Use in ingested drugs is subject to quantity and period of use restrictions. Consult Color Additive Regulations of the U.S. Food and Drug Administration before using."

2. Section 8.510(c) is amended by inserting after the words "ingested drugs" in both places in the first sentence, the parenthetical phrase "(except for limited use as provided in § 8.503(c))". As amended, the first sentence of paragraph (c) reads as follows:

§ 8.510 Cancellation of certificates.

* * * * *

(c) Certificates issued heretofore for the color additive designated FD&C Red No. 4 (§ 9.63 of this chapter) and of all mixtures containing this color additive were canceled affective June 9, 1965, insofar as food (except maraschino cherries as provided in § 8.503(c)), ingested drugs (except for limited use as provided in § 8.503(c)) and ingested cosmetics are concerned, and use of this color additive in the manufacture of food (except maraschino cherries as provided in § 8.503(c)) and ingested drugs (except for limited use as provided in § 8.503(c)) and ingested cosmetics after that date will result in adulteration. * * *

B. In keeping with the amendment to the transitional color additive regulations as promulgated on August 19, 1965 (30 F.R. 10289), and the current amendments to § 8.503(c), and pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 505, 701, 52 Stat. 1052, 1055 as amended; 21 U.S.C. 355, 371) and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 130.36(a) of Subpart A, Part 130, is amended to read:

§ 130.36 FD&C Red No. 4; procedure for discontinuing use in new drugs for ingestion; statement of policy.

(a) Section 8.502(d) of this chapter published December 11, 1964 (29 F.R. 16983), terminated the provisional listing of FD&C Red No. 4 for use in drugs that may be ingested and canceled the effectiveness of certificates for this color additive and mixtures containing it as of June 9, 1965 (§ 8.510(c) of this chapter), insofar as ingested drugs are concerned. On August 19, 1965 (30 F.R. 10289), FD&C Red No. 4 was restored to provisional listing by amendment to § 8.501(a), which restricted the use of the color to the terms of § 8.503. The use of FD&C Red No. 4 or mixtures containing it in the manufacture of ingested drugs (except for limited use as provided in § 8.503) will result in adulteration and may constitute grounds for withdrawing approval of drugs for which a new-drug approval is in effect.

* * * * *

Notice and public procedure and delayed effective date are not necessary prerequisites to the promulgation of the color additive amendment in this order because section 203(d)(2) of Public Law 86-618 so provides. The amendment to Part 130 is editorial in nature.

*Effective date.* This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Title II, Public Law 86-618; 74 Stat. 404 et seq.; 21 U.S.C. note under 376; secs. 505, 701, 52 Stat. 1052, 1055 as amended; 21 U.S.C. 355, 371)

Dated: October 7, 1965.

GEO. P. LARRICK,
*Commissioner of Food and Drugs.*

[F.R. Doc. 65-10962; Filed, Oct. 13, 1965; 8:48 a.m.]

# Title 43—PUBLIC LANDS: INTERIOR

## Chapter II—Bureau of Land Management, Department of the Interior

### APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3847]

[Anchorage 062131]

### ALASKA

### Revocation of Public Land Order No. 316

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Public Land Order No. 316 of March 5, 1946, withdrawing the following described lands for use of the Reconstruction Finance Corporation, is hereby revoked:

JAKOLOF BAY AREA

Beginning at a point on the south shore of Jakolof Bay, Kenai Peninsula, Alaska, in approximate latitude 59°28' N., longitude 151°34' W. from which the NE corner of U.S. Survey No. 2675, known as Red Mountain at the junction of Kasitsna and Jakolof Bays bears northwesterly ½ mile along the shore of Jakolof Bay; thence

Southeasterly along the shore of Jakolof Bay, 1 mile;

Southwesterly at right angles to the shore, ½ mile;

Northwesterly parallel to the shore of Jakolof Bay, 1 mile;

Northeasterly ½ mile to place of beginning.

Containing approximately 320 acres.

The lands are locted near Seldovia, Alaska.

2. Until 10 a.m. on January 7, 1966, the State of Alaska shall have a preferred right to select the lands released from withdrawal by this order in accordance with the provisions of the Act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46-3b), and section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 2222.9.

3. This order shall not otherwise become effective to change the status of the lands until 10 a.m. on January 7, 1966. At that time they shall be open to the operation of the public land laws generally, including the mining and mineral leasing laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on January 7, 1966, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

4. Any disposals of the lands described in paragraph 1 of this order shall be subject to the right, title, and interest of the United States in and to ores stockpiled on the lands, and to the right of the United States to remove the same at its convenience.

Inquiries concerning the lands should be addressed to the Manager, District and Land Office, Bureau of Land Management, Anchorage, Alaska, 99501.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

OCTOBER 7, 1965.

[F.R. Doc. 65-10935; Filed, Oct. 13, 1965; 8:46 a.m.]

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[Public Land Order 3848]

[Anchorage 062192]

### ALASKA

### Partial Revocation of Executive Orders No. 2242 of August 31, 1915 and No. 3672 of May 8, 1922

By virtue of the authority vested in the President by section 1 of the Act of March 12, 1914 (38 Stat. 305; 48 U.S.C. 303) and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Orders No. 2242 of August 31, 1915 and No. 3672 of May 8, 1922, withdrawing lands for townsite purposes, are hereby revoked so far as they affect the following described lands:

Anchorage Townsite, East Addition, Block 31-B.

Anchorage Townsite, Fourth Addition, Tracts 1 to 3, incl., and 7 to 10, incl.

The areas described aggregate 64.50 acres.

2. Until 10 a.m. on January 8, 1966, the State of Alaska shall have a preferred right to select the lands released from withdrawal by this order subject to the requirements and limitations of the Act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46-3b), section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339) and the regulations in 43 CFR 2222.9.

3. This order shall not otherwise become effective to change the status of the lands until 10 a.m. on January 8, 1966. At that time they shall be opened to the operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable land law. All valid applications received at or prior to 10 a.m. on January 8, 1966, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

Inquiries concerning the lands should be addressed to the Manager, Anchorage

District and Land Office, Bureau of Land Management, Anchorage, Alaska, 99501.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

OCTOBER 8, 1965.

[F.R. Doc. 65-10936; Filed, Oct. 13, 1965; 8:46 a.m.]

# Title 47—TELECOMMUNICATION

## Chapter I—Federal Communications Commission

[Docket No. 14864; FCC 65-913]

## PART 0—COMMISSION ORGANIZATION

## PART 1—PRACTICE AND PROCEDURE

### Miscellaneous Amendments

*Memorandum Opinion and Order.* In the matter of new § 0.418 and amendment of § 0.417 (formerly in 0.406), 1.580 (formerly 1.359), and 1.594 (formerly in 1.362) of the Commission's rules relating to inspection of records, to pre-grant procedures, and to local notice of filing or of designation for hearing of broadcast applications; Docket No. 14864.

1. In a Report and Order (30 F.R. 4543, April 8, 1965) in this proceeding the Commission amended its rules to require broadcast applicants, permittees, and licensees to maintain files open for public inspection in the communities served or proposed to be served by them. Such files are required to contain certain applications and related material already open for public inspection at the offices of the Commission in Washington, D.C. The new rules became effective May 14, 1965.[1] The Commission now has before it three timely petitions for reconsideration of the report and order. We also note certain other informal petitions and letters filed by broadcasters, state broadcasters associations, and members of Congress.[2]

2. The petitions contain no new matter not previously considered by the Commission in adopting the report and order, and, with one exception, we see no reason for changing our views. For example, it is urged that the local files should contain only the programming portion of applications since this is the only portion in which the public is interested. In addition, it is stated that the programming parts of applications are too technical for the public to understand. These arguments were considered in paragraphs 14 and 15 of the report and order. It is also argued that principal use of the files will be made by cranks or curiosity seekers, that the legitimate public will not bother to inspect them, and that therefore the files will not contribute to a dialogue between the licensees and the public. Paragraphs 5 through 12 of the report and order gave consideration to these matters. The exception mentioned above has to do with the argument, made in the petitions for reconsideration as well as in comments filed in response to the notice, that the engineering information required to be kept as a part of applications in the local file is too technical for use by the general public. On reconsideration, we are impressed by this argument. It appears that our purposes would be adequately served by making available to the local public information concerning transmitter and main studio locations and the service contours of a station—material which presently is submitted with other engineering data. Those maintaining the files, if they choose to do so, may also keep in them other engineering information, but they will not be required to do so. The rules in the attached Appendix are accordingly amended to require the file to contain transmitter and main studio locations and service contours, but no other engineering information.[3]

3. Other examples of objections raised are those directed against the keeping of financial information in the files where it will be available to competitors, and those which raise questions about the lack of a specific retention period for keeping the files and the possibility that files may become too bulky and full of material to be useful. Although the financial question was dealt with in paragraph 15 of the report and order, and the matters of size and retention period were treated in paragraphs 17, 20, and 29, we believe that it may be helpful to elaborate further on these topics. Accordingly, we shall discuss them in the immediately following paragraphs. After that discussion, the remainder of this document will be devoted to questions which have arisen as to how to comply with the new rules, and to relatively minor changes in the rules which we are making, the necessity for which became apparent since the report and order was issued.

*Financial information.* 4. There has apparently been considerable misunderstanding concerning the keeping of financial information in the local file. Some broadcasters seem to think that the new rules require them to open their books and all other financial information to the local public. This is not so. The new rules require certain applications to be in the local file. Those applications contain various sections, one of which contains financial information. That information, as we stated in the report and order (par. 15) contains estimates of costs of installation, expected revenues, and plans for financing. It also includes a balance sheet as of the close of the month within 90 days of the date of the application showing the applicant's financial position. This material affords the Commission a reasonable basis for determining whether the applicant is financially capable of carrying forward the broadcasting operation which it seeks to undertake.

5. There is no requirement that financial information not called for in the application be in the file. Thus, the applicant's books are not open to the local public. Nor is the annual financial report (FCC Form 324) which is filed with the Commission in Washington and which shows revenues and expenditures. However, if the applicant voluntarily chooses to incorporate such reports by reference into material required to be kept in the local file, then the reports must also appear there. As stated in the report and order (par. 22), the purpose of disclosure of information to the local public would be defeated if items could be incorporated by reference without appearing in the file.

6. This rationale is not novel. For years the following instruction has appeared on the first page of section I of various broadcast application forms with regard to material incorporated by reference:

> Information called for by this application which is already on file with the Commission need not be refiled in this application provided (1) the information is now on file in another application or FCC form filed by or on behalf of this applicant; (2) the information is identified fully by reference to the file number (if any), the FCC form number, and the filing date of the application or other form containing the information and the page or paragraph referred to, and (3) after making the reference, the applicant states: "No change since date of filing." Any such reference will be considered to incorporate into this application all information, confidential or otherwise, contained in the application or other form referred to. The incorporated application or other form will thereafter, in its entirety, be open to the public.

Therefore, if information appearing in an annual financial report, not normally open to the public at the offices of the Commission in Washington, is incorporated by reference into an application on file with the Commission, it is no longer afforded the same privileged status with regard to inspection in Washington. The requirements of the new rules with regard to the local files merely follow this policy.

[1] Petitions for stay of the effective date were denied in a Memorandum Opinion and Order (FCC 65-413) adopted May 12, 1965.

[2] Petitions for reconsideration were filed by the National Association of Broadcasters; the law firm of Grove, Paglin, Jaskiewicz, Sells, Gilliam, and Putbrese; and, jointly, by Basic Communications, Inc., and 21 other broadcast licensees. So-called "Reply Comments" to the petitions for reconsideration were separately filed by the Lotus Theatre Corp., Piedmont Publishing Co., Tri-State Radio, Inc., and WCUE Radio, Inc. In substance, they are petitions for reconsideration and were filed after May 10, 1965, the last day for filing such petitions. They are unaccompanied by separate pleadings for leave to file as required by § 1.106(f) of the rules and are therefore not accepted. In any event, they contain no arguments which move us to alter our previous decision. State associations filing informal petitions were the Illinois Broadcasters Association, Kansas Association of Radio Broadcasters, Missouri Broadcasters Association, Montana Broadcasters Association, South Carolina Broadcasters Association, the Washington State Association of Broadcasters, and the Indiana Broadcasters Association, Inc.

[3] We are extending this map and location information requirement to all stations, whether or not they have filed applications required to be kept in a local file.